



File No.: EXP202313748

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On August 22, 2023, a document was received in this Agency from the Court of Instruction (...) of Sabadell, indicating that a copy of the document from the Public Prosecutor's Office and the order for provisional dismissal of proceedings in the Summary Procedure ***REFERENCE.3 was being sent, in case it involved a violation of data protection regulations. Along with this document, the following was provided:

- a copy of the Order for provisional dismissal of the Summary Procedure ***REFERENCE.3, related to an alleged crime of fraud and usurpation of civil status, which has been provisionally dismissed as the perpetration of the crime was not justified,
- a document from the Public Prosecutor's Office requesting the transfer to the AEPD in case it involved a violation of data protection regulations.

SECOND: The Director of the Spanish Agency for Data Protection instructed the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate A.A.A. with NIF ***NIF.1 (hereinafter, the complained party).

In the framework of these proceedings, on October 18, 2023, and February 9, 2024, a request was made to the Court of Instruction (...) of Sabadell to send the documentation in the proceedings for evaluation.

THIRD: On February 28, 2024, the requested documentation was received in this Agency. From the documentation provided, it is concluded that the complained party, employed by the company ***EMPRESA.1, allegedly used the ID numbers of several individuals to obtain discount vouchers with which to make purchases and consumptions in certain businesses. Having accessed such personal data because it was provided by the holders during various rental, purchase, and recreational vehicle parking transactions (...).

FOURTH: On June 11, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), on July 31, 2024, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party. Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation

agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: It is established that A.A.A. worked at the company ***EMPRESA.1,

SECOND: It is established that the complained party was subject to a judicial procedure conducted before the Court of Instruction (...) of Sabadell - summary procedure ***REFERENCE.1, preliminary proceedings ***REFERENCE.2 - in which, as stated in the file, it was established that they used the ID numbers of several individuals without their consent, in order to obtain discount vouchers to make purchases without the consent of the holders.

THIRD: In court, it has been established that the complained party had access to the ID numbers of these individuals because they themselves had provided them during various transactions carried out at the company ***EMPRESA.1 where the complained party worked.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), it is competent to

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

To initiate and resolve this procedure, the Presidency of the Spanish Agency for Data Protection shall act.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction;"

"11) 'consent of the data subject': any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them;"

III

Unfulfilled Obligation

Article 6 regulates the lawfulness of processing in the following terms:

"Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific

purposes;

- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

On this issue of the lawfulness of processing, Recital 40 of the aforementioned GDPR also emphasizes that "For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of compliance with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract."

In the present case, it has come to light, as a result of a transfer of proceedings carried out by the Investigating Court (...) of Sabadell, that the respondent party had used the ID numbers of several individuals to obtain discount vouchers for purchases and consumptions in businesses. The respondent party had obtained such personal data as it had been provided by the data subjects during various dealings conducted at the company where the respondent party works, but it was not authorized to use them to obtain such discount vouchers.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to the respondent party for violation of Article 6.1 of the GDPR.

IV

Classification and Qualification of the Infringement

The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, under the heading "General conditions for the imposition of administrative fines" states:

"5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

total annual global turnover of the previous financial year, opting for the highest amount:

- a) the basic principles for processing, including the conditions for consent pursuant to Articles 5, 6, 7, and 9;

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

"1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

- b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

V

Sanction for the infringement of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 6.1 of the GDPR, allows for the imposition of an administrative fine of 2,000 euros.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of two thousand euros (2,000 euros).

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

938-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es